Turnage, Kevin D. (IHS/PHX)

From: Turnage, Kevin D. (IHS/PHX)
Sent: Friday, October 7, 2022 1:43 PM
To: Greve, Tonie (IHS/PHX)
Cc: White, Jason (IHS/PHX/PIMC); Lee, Candace S. (IHS/PHX); Homer, Michelle (IHS/PHX); Patton, George W (IHS/PHX)
Subject: RE: reasonable accommodation denied?
Attachments: RA Medical Request Form_AttAB46.tmp.H.S_.pdf; HHS-813 Confirmation of Request for Reasonable Accomodation.pdf

As previously stated the only reasonable accommodation for I am aware of is for Asthma/immunocompromised requesting to limit your time in the triage room. When we discussed previously you stated that there were things in the triage room that aggravated your asthma and I agreed to have the items removed from the room (which has occurred) and also stated that when assigned to cover the triage room you could use a exam room instead. You stated at that time that was agreeable until a finalization of the reasonable accommodation. I understand you state that a licensed clinician signed a letter for you. However, the letter I sent you on June 17, 2022 requested additional information within 15 days of date of receipt of the letter. I am not aware of any requested documentation being returned.

In regards to the October 5th and 6th assignments of staff. It was your turn to cover the triage room so when your co-worker was taken to the Emergency Department I assigned you to cover in the order of rotation. Brenda covered while Arlene was on Vacation and Bertha covered before that making it your turn to cover. Everyone was assigned to work the vaccination and each CCC covers the triage room, therefore, all RN's including the contract RN were assigned the same duties to cover vaccination clinic and the triage room and there were no preferential treatment of any employee.

Since the additional medical documentation was not received as requested, it is my understanding that in order to initiate a reasonable accommodation request, you must complete a new form HHS-813 and return the form to george.patton@ihs.gov or Michelle.Homer@ihs.gov. Please let me know if you have any questions or need any additional information. I am also attaching the medical request form for your provider to complete to help expedite the process.

In regards to your ecomp filing. As previously stated on May 18, 2022 when I checked last and discussed with you, the supervisor completed the filing. If you have any questions regarding the filing, you should check with the Department of Labor. I am not sure who Leonard is that you are referring to so, please provide me with full name and date you spoke with him.

V/r

Hon. Kevin Turnage MSN Ed. RN, AMB-BC, NHDP-BC, NPD-BC

"I am not authorized to obligate the government for any work, service or product. Please do not perform any work that will require payment without a valid contract, issued by a government Contracting Officer. Changes to a contract can only be made by the contracting officer. Contractors are reminded to promptly notify the contracting officer of any conduct that may be regarded as a change to the contract in accordance with FAR52-243-7"

From: Greve, Tonie (IHS/PHX) <Tonie.Greve@ihs.gov>
Sent: Thursday, October 6, 2022 4:01 PM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>

Cc: White, Jason (IHS/PHX/PIMC) <Jason.White@ihs.gov>; Lee, Candace S. (IHS/PHX) <Candace.Lee@ihs.gov>
Subject: RE: reasonable accommodation denied?

Good Afternoon Kevin:

I have a signed Reasonable Accommodation letter by a Licensed Clinician, specialists who completed the I.HS/HHS form and turned in to the agency.
I did not refused the mandatory assignment on 10/6/2022 out of fear and retaliation/reprisals.

I was discriminated and it will be addressed through the EEOC process.
As a Federal Employee no one should be discriminated.
All employees who have reasonable accommodations should be treated the same with no preferential treatment.

You were acting in the Primary Care Medicine Clinic Nurse supervisor prior to taking the position permanently and at that time told you of my disability.
There is nothing more that should be supplied for the Reasonable Accommodations form, my immunocompromised status will be for the rest of my life and has been before working at HHS/I.HS.
I left that position Nurse Assessment/Nurse Triage at primary care clinic due to my permanent disability and other discriminatory issues. (I am sharing this information again with management officials)

I am working with you as my supervisor but I do not want to be discriminated, harassed or retaliated.

Thank you for looking into the E-Comp that I completed back in January 2022 of this year which I submitted the required documents.
I was mandated to work in the nurse assessment/nurse triage January 3, 4, 5 and became infected with coronavirus on January 6, 2022 after being exposed to several persons let into the room. I used 57 hours of leave and like I discussed as I know the only person in primary care medicine clinic who has not had the leave restored. I submitted positive covid-19 test, documentation of clinic visits, f/u visit while out sick with the virus. I hope this can be completed it needs a supervisor to go into the system and answer their portion as I was told by Leonard.

Respectfully,

Tonie Greve RN CCC Silver & Ocotillo Teams

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, October 5, 2022 3:54 PM
To: Greve, Tonie (IHS/PHX) <Tonie.Greve@ihs.gov>
Subject: RE: reasonable accommodation denied?

Tonie,

As far as I am aware, your RA was not denied I am not aware of a clinician reviewing your RA or any documents other than what EEO officer sent to me. If you have additional information or documentation please share. We discussed when I became clinic Supervisor that you were requesting a RA for the triage room due to your Asthma and I agreed that if you had to do triage then you could use an exam room instead of the triage room. I have not received any other requests other than that one for the triage room. If there are other accommodations, you feel you need please let me know so that they can be properly addressed. As explained this morning regarding your ecomp claim I would try and follow-up and asked that you give me until next week to see if I could get a response because since it was filed it is no longer with IHS it should be with the Department of Labor. I do not have the specifics of when you contracted COVID

including dates or specific laws that may or may not have been in effect at that time. I have left voicemail for my contact and will continue to follow-up to try and get you an answer regarding your ecomp claim.

V/r

Hon. Kevin Turnage MSN Ed. RN, AMB-BC, NHDP-BC, NPD-BC

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From: Greve, Tonie (IHS/PHX) <Tonie.Greve@ihs.gov>
Sent: Wednesday, October 5, 2022 8:23 AM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Subject: RE: reasonable accommodation denied?

It has been denied per the written statement by the Licensed Clinician.

I was placed in this nurse triage in January 3, 4, 5 and was exposed to positive covid-19 patients and became infected. I filed the E-Comp and used 57 hours of sick leave. All other Federal Employees were given back the hours used for the sick leave except for Tonie Greve. I have asked Angie Dickerson to complete as the supervisor, and asked you to assist in completing.
I still have not had the E-Comp hours returned to my bank. I do not understand why I am the only primary care medicine employee who has not had this completed by a supervisor.

I am not the only persons at primary care medicine clinic that have requested Reasonable Accommodations but the forms I submitted have been denied. I am following your directive but had to ask and clarify.

I don't have anyone covering my official duties so I will have no choice but to stay here and perform double duties.

Respectfully,

Tonie Greve RN CCC Silver & Ocotillo Teams

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, October 5, 2022 7:50 AM
To: Greve, Tonie (IHS/PHX) <Tonie.Greve@ihs.gov>
Subject: RE: reasonable accommodation denied?

No as we discussed you can use and exam room instead of the triage room. Would you rather go to vaccine clinic and do vaccinations on employees today and tomorrow.

V/r

Hon. Kevin Turnage MSN Ed. RN, AMB-BC, NHDP-BC, NPD-BC

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made by the contracting officer. Contractors are reminded to promptly notify the contracting officer of any conduct that may be regarded as a change to the contract in accordance with FAR52-243-7"

From: Greve, Tonie (IHS/PHX) <Tonie.Greve@ihs.gov>
Sent: Wednesday, October 5, 2022 7:33 AM
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Subject: reasonable accommodation denied?

Good Morning Kevin;

Heading over had to grab equipment and things.
I heard your text while driving, could not respond.

I do have a question on the reasonable accommodations that I submitted.
Was it denied?

Respectfully,

Tonie Greve RN CCC Silver & Ocotillo Teams